

defendants, the risk of inconsistent rulings/verdicts and interests of judicial economy weigh in favor of the court exercising its discretion to decline to enforce the alternative dispute resolution process as against him.

The petition is denied.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507156	COOPER VS COUNTY OF RIVERSIDE	DEMURRER

Tentative Ruling:

Per the parties' meet-and-confer, Defendant no longer challenges the sufficiency of the pleadings as to the following causes of action: 1) Discrimination based on race, ethnicity, ancestry, color, and/or national origin in violation of FEHA only; 3) Retaliation; 4) Failure to Prevent Discrimination, Harassment or Retaliation; and 7) Whistleblower Retaliation.

1st Cause of Action – Discrimination based on disability

Government Code section 12940, subdivision (a) prohibits an employer from discriminating against an employee based on a protected characteristic. In order to establish a claim of discrimination, a plaintiff must prove: (1) they are in a protected class; (2) an adverse employment action was taken against them; (3) at the time of the adverse action they were satisfactorily performing their job; and (4) some other circumstance suggesting discriminatory motive. (*Guz v. Bechtel* (2000) 24 Cal.4th 317, 355.)

In the meet and confer declaration, defense counsel concedes Plaintiff properly alleges the "discrimination based on race, ethnicity, ancestry, color, and/or national origin in violation of FEHA only, not discrimination based on disability." (Castorena Decl., ¶ 9.) A general demurrer does not lie to only part of a cause of action. (*Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.) If there are sufficient allegations to entitle plaintiff to relief, other allegations cannot be challenged by general demurrer. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167 [disapproved on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 948.] Thus, where there is a substantive defect affecting only a portion of a claim, the proper challenge is by motion to strike. (*PH II, Inc. v. Sup. Ct.* (1995) 33 Cal.App.4th 1680, 1682-1683 [legal malpractice claim based on several incidents of alleged malpractice, one of which was not actionable as a matter of law].)

Defendant also demurs to this claim on the ground of uncertainty. Generally, each version of the facts or each legal theory should generally be pleaded in a separate cause of action in the complaint. (C.C.P., § 430.10(f); see *Campbell v. Rayburn* (1954) 129 Cal.App.2d 232, 235.) However, "demurrers for uncertainty are disfavored, and are

granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (*Lickiss v. Fin. Indus. Regulatory Auth.* (2012) 208 Cal.App.4th 1125, 1135.) In addition, even where a complaint is in some respects uncertain, courts strictly construe a demurrer for uncertainty “because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) Moreover, a plaintiff is entitled to plead facts or legal theories in the alternative, even inconsistent ones. (See *Rader Co. v. Stone* (1986) 178 Cal.App.3d 10, 29.)

In the declaration in support of the further meet and confer efforts, counsel states it is their position “Plaintiff had not alleged sufficient facts showing she suffered an adverse employment action on account of her disability.” This is a basis for a general demurrer for failure to state sufficient facts, not uncertainty. As the FAC is sufficiently certain, the demurrer is overruled as to the 1st cause of action.

2nd Cause of Action – Harassment based on disability, race, ethnicity, ancestry, color, and/or national origin in violation of FEHA

“To prevail on a harassment claim under FEHA, a plaintiff must produce evidence they were subjected to ‘offensive comments or other abusive conduct’ that is (1) based on a ‘protected characteristic’ and (2) ‘sufficiently severe or pervasive as to alter the conditions of [his] employment.’ [Citation.] To constitute harassment, the conduct must be so objectively severe or pervasive as ‘to create a hostile or abusive working environment.’” [Citation.] Factors to consider in this context include the frequency of the conduct, its severity, whether it is physically threatening or humiliating, and whether it unreasonably interferes with the employee’s work performance.” (*Doe v. Dep’t of Corr. & Rehab.* (2019) 43 Cal.App.5th 721, 736) “The required level of severity or seriousness varies inversely with the pervasiveness or frequency of the conduct. [S]imple teasing, offhand comments, and isolated incidents (unless extremely serious) are not sufficient to create an actionable claim of harassment.” (*Bailey v. San Francisco Dist. Attorney’s Off.* (2024) 16 Cal.5th 611, 628 [internal citations and quotations omitted].) Harassment claims focus on “situations in which the social environment of the workplace becomes intolerable because the harassment (whether verbal, physical, or visual) communicates an offensive message to the harassed employee.” (*Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 706.) “Harassment... consists of actions outside the scope of job duties which are not of a type necessary to business and personnel management.” (*Jumaane v. City of Los Angeles* (2015) 241 Cal.App.4th 1390, 1408.)

Defendants argue none of the alleged conduct arises to the level of severe or pervasive. The FAC alleges Stone repeatedly made derogatory remarks, including stating Plaintiff “thinks she is all that because she is the only black supervisor,” directing a Black employee to shorten conversations with “customers like you” (referring to Black customers), and referring to Plaintiff as “so military” in a manner that stereotyped Black women as harsh and aggressive. (FAC ¶¶ 14(b–c).) Rosa told Plaintiff, “You know my dad is in the KKK?” (FAC ¶ 14(d)) When Plaintiff reported the racial threat, Minas dismissed her concerns by stating, “It’s just words,” and failed to take corrective action.

(*Id.*) These allegations are sufficient at the pleading stage to allege harassment. The demurrer is overruled as to the second cause of action.

5th Cause of Action – Failure to provide a reasonable accommodation and 6th Cause of Action – Failure to engage in the interactive process

It is an unlawful employment practice for an employer to “fail to make reasonable accommodation for the known physical or mental disability of an applicant or employee.” (Gov. Code § 12940(m).) “The essential elements of a failure to accommodate claim are: (1) the plaintiff has a disability covered by the FEHA; (2) the plaintiff is a qualified individual (i.e., he or she can perform the essential functions of the position); and (3) the employer failed to reasonably accommodate the plaintiff’s disability. [Citation.]” (*Cuiellette v. City of Los Angeles* (2011) 194 Cal.App.4th 757, 766.)

Defendant argues Plaintiff failed to identify an accommodation that she was denied or allege that the interactive process did not occur. Plaintiff alleges she suffers from anxiety and depression that substantially limit major life activities, including work. (FAC ¶ 13(b).) Plaintiff was qualified to perform her position, after experiencing ongoing discriminatory and harassing conduct by Minas, Stone, Rosa, and Moreno, Plaintiff’s treating physician requested an accommodation preventing further contact with those individuals. (FAC ¶¶ 11-12, 14(b)–(d), 14(q).) Rather than engage in the interactive process or explore alternatives, Fuller summarily denied the request, stating that the accommodation “could not be granted.” (FAC ¶ 14(q).) The FAC alleges Defendant offered no alternative accommodation or meaningful discussion regarding how Plaintiff could return to work while addressing the conditions contributing to her disability. (*Id.*) She also alleges that upon Plaintiff’s return, Defendant did not engage with Plaintiff regarding any limitations or potential accommodations; instead, Defendant immediately placed Plaintiff on administrative leave one day after her return. (FAC, ¶ 14(w).) These allegations are sufficient at the pleading stage. The demurrer is overruled as to the 5th cause of action.

8th Cause of Action – CFRA leave retaliation

“The elements of a cause of action for retaliation in violation of CFRA are: (1) the defendant was an employer covered by CFRA; (2) the plaintiff was an employee eligible to take CFRA [leave]; (3) the plaintiff exercised her right to take leave for a qualifying CFRA purpose; and (4) the plaintiff suffered an adverse employment action, such as termination, fine, or suspension, because of her exercise of her right to CFRA [leave].” (*Bareno v. San Diego Community College District* (2017) 7 Cal.App.5th 546, 560.) Defendant argues Plaintiff failed to establish a causal connection between her CFRA leave and any purportedly retaliatory adverse action. At this juncture, Plaintiff does not need to “establish” any causal connection, as it is sufficient to allege a connection. The FAC alleges Plaintiff took protected CFRA leave due to her disability and Defendant’s failure to accommodate. (FAC ¶¶ 13(b), 14(r).) Upon returning, Plaintiff was placed on unexplained administrative leave one day later and subjected to an investigation concerning alleged overtime issues from months before her leave. (FAC ¶ 14(w).)

Defendant then terminated Plaintiff's employment. (FAC ¶¶ 14(y), 15(a).) This is sufficient for pleading purposes. The demurrer is overruled as to the 8th cause of action.

9th Cause of Action – CFRA leave interference

Claims for CFRA interference invoke the CFRA's prohibition on an employer's interference with or restraint or denial of an employee's right to such leave. (Gov. Code, § 12945.2(q).) "A CFRA interference claim consists of the following elements: (1) the employee's entitlement to CFRA leave rights; and (2) the employer's interference with or denial of those rights." (*Soria v. Univision Radio Los Angeles, Inc.* (2016) 5 Cal.App.5th 570, 601.) Defendant argues Plaintiff had failed to show she was denied CFRA leave benefits. Plaintiff alleges during leave, County representative Mary Mizell subjected her to intrusive inquiries regarding her diagnosis, medications, and treatment plan beyond what was necessary to administer her leave under CFRA, which Plaintiff alleges were intended to intimidate and discourage her from exercising her CFRA rights. (FAC ¶ 14(s).) Upon Plaintiff's return from leave, Defendant failed to restore her to the same or a comparable position. Instead placing her on unexplained administrative leave, prevented her from resuming her position, and ultimately terminated her employment. (FAC ¶¶ 14(w–x), 15(a).) Again, the FAC alleges conduct during and after Plaintiff's leave that purportedly interfered with her statutory rights, which is sufficient at the pleading stage. The demurrer is overruled as to the 9th cause of action.

The demurrer is overruled.